

2026 BALLOT QUESTIONS

2026 Ballot Question Pamphlet compiled by the Office of the Secretary of State

The text of this pamphlet is available on our website at www.sdsos.gov.

The title, explanation, and effect of a vote for each ballot question were provided by the Attorney General. No other statements on this pamphlet reflect the opinion of the Secretary of State or Attorney General.

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12-13-23. Distribution of public information. The secretary of state shall distribute public information on any amendment to the Constitution, initiated measure, or referred law submitted to the electors for approval. The secretary of state shall compile the public information by printing a statement in support of the amendment to the Constitution, initiated measure, or referred law written by its proponents, if any can be identified, and a statement against the amendment to the Constitution, initiated measure, or referred law written by its opponents, if any can be identified. No statement written by a proponent, or an opponent may exceed three hundred words in length. The secretary of state is not responsible for the contents, objectivity, or accuracy of the statements written by the proponents and opponents. The pamphlet shall also include the attorney general's title, explanation, and a recitation of the effect of a "Yes" or "No" vote as written pursuant to § 12-13-9 or 12- 13-25.1; number of pages and sections in the proposed or referred language; and, if applicable, a fiscal note.

Please feel free to photocopy and distribute this pamphlet. You may also bring the pamphlet with you to vote at your polling place.

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Constitutional amendments and initiated and referred measures approved by majority vote will become effective on the first day of July after the completion of the official canvass by the State Canvassing Board. (SDCL 2-1-12)

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Constitutional Amendment J

Title: An Amendment to the South Dakota Constitution Clarifying that an Individual Must Be a Citizen of the United States to be Eligible to Vote.

Attorney General Explanation: Article VII, § 2 of the South Dakota Constitution defines who is qualified to vote in state elections. Among these qualifications are age, residency, and United States citizenship requirements. Article VII, § 2 also establishes that individuals may be disqualified from voting because of mental incompetence or a felony conviction.

This constitutional amendment adds people who are not United States citizens to the list of individuals disqualified from voting, clarifying the existing requirement that only citizens may vote in state elections.

Vote "Yes" to adopt the amendment.
Vote "No" to leave the Constitution as it is.

The text of this constitutional amendment is one page long with two sections.

Pro – Constitutional Amendment J	Con – Constitutional Amendment J
Amendment G protects the integrity of South Dakota elections by making it clear that only United States citizens may vote in elections in South Dakota. Vote YES if you agree. The South Dakota Constitution currently states that every United States citizen who is eighteen years of age or older and has met all residency requirements is entitled to vote in all elections, unless disqualified by law for mental incompetence or conviction of a felony. However, our Constitution does not explicitly state that individuals who are not United States citizens are prohibited from voting. As long as United States citizens who meet the requirements are allowed to vote, nothing currently prohibits non-citizens also being allowed to vote. Amendment G closes that constitutional loophole. Currently, the South Dakota Constitution recognizes only two reasons a person may be disqualified from voting: mental incompetence and conviction of a felony. Amendment G adds a third disqualification: not being a citizen of the United States. Vote YES to make it unmistakably clear that only United States citizens may vote in South Dakota elections. This amendment does not change the voting rights of any eligible United States citizen. It does not change voter registration requirements, residency requirements, or election procedures. It simply adds clear language to our Constitution stating that non-citizens are not eligible to vote. If approved by a majority of voters at the general election, this amendment will become part of the South Dakota Constitution. If rejected, the current constitutional loophole would remain in place. South Dakotans deserve confidence that our Constitution clearly protects the integrity of our elections. Vote YES on Amendment G. Taffy Howard, State Senator, District 34	Today, under South Dakota's Constitution, only United States citizens can vote. Non-citizens cannot. Amendment J does not solve any problems. Instead, it creates one: you, a citizen, could be denied the right to vote over a challenge to your citizenship. The first line of Amendment J restates what our state's Constitution already says: "Every individual who is a citizen of the United States" is entitled to vote. The problem is what Amendment J adds—"an individual who is not a citizen of the United States is disqualified from voting"—paired with a recently enacted law. Effective July 1, 2026, any registered voter may challenge your registration by claiming you are not a citizen. There is no simple document to prove a person is not a citizen. When a challenge is filed, the burden shifts to you to prove that you are a citizen, with no clear timeline for when your citizenship is recognized. In practice, this means a challenge from anyone could keep you from casting a timely absentee or Election Day ballot. Amendment J was sold in the Legislature as stopping non-citizens from voting. Instead, it makes ordinary citizens prove their status—most often naturalized citizens or citizens questioned over their name or background. Amendment J does not solve anything. In 2024, the state found and removed 273 non-citizens from its rolls. Those people had marked "no" to citizenship on their driver's license applications, and the Department of Public Safety registered them as a result of human error. There has been no attempt to commit mass election fraud by noncitizens in South Dakota. Only citizens can vote in South Dakota. Amendment J does not change that, but it gives bad actors a tool to deny your vote through an unclear citizenship challenge process. Vote No on Amendment J. Representative Erik Muckey, District 15